

25STCV25304 25STCV25304

County: los-angeles

Division: Civil Law and Motion

Department: 11

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Case Number: 25STCV25304 Hearing Date: August 21, 2026 Dept: 11

People v. Sweepsteaks Ltd. (25STCV25304)

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Tentative Ruling Re:

Motion to Quash

Date: 8/21/26

Time: 11:00 am

Moving

Party: Veriff OU ("Veriff")

Opposing

Party: The People of the State of
California ("People" or "Plaintiff")

Department: 11

Judge: Bruce G. Iwasaki

TENTATIVE RULING

The motion to quash is granted.

BACKGROUND

The operative complaint (“FAC”) alleges that numerous companies, Veriff among them, play a role in operating a gambling website called Stake.us. (See Opposition, p. 7.) Plaintiff claims the website is “highly addictive” and unlawful. (Ibid.; see also FAC, ¶¶ 285-302.)

Allegedly, “Veriff acts as the security guard at the front door of the Stake.us casino.” (Opposition, p. 8.) Plaintiff asserts that “Veriff verifies the age, identification, and geographic location (‘geolocation’) of all potential Stake.us users, including those in California, to ensure they are playing within a Stake.us-authorized state, such as California.” (Ibid.)

“Veriff is a private Estonian company and is headquartered in Tallin, Estonia.” (Helm Decl., ¶ 2.)

According to Veriff’s corporate representative, “Veriff does not have any offices, facilities, or employees in California” and “does not purposefully target or direct any of its marketing or other business activities specifically toward California residents[.]” (Id. at ¶ 8.)

Here, Veriff moves to quash for lack of personal jurisdiction.

APPLICABLE

LAW

There are “two types of personal jurisdiction[.]” general and specific. (Bristol-Myers Squibb Co. v. Superior Court of California, San Francisco County (2017) 582 U.S. 255, 262.) Plaintiff relies on specific jurisdiction.

“When determining whether specific jurisdiction exists, courts consider the ‘relationship among the defendant, the forum, and the litigation.’” (Halyard Health, Inc. v. Kimberly-Clark Corp. (2019) 43 Cal.App.5th 1062,

1070 (“Halyard Health”).)

“[C]ourts focus on the nature and quality (not the quantity) of defendant’s activity in the forum state.”

(Weil & Brown, Cal. Practice Guide: Civ. Procedure Before Trial (The Rutter Group June 2023 Update) ¶ 3:240.) “[S]ingle or occasional acts of the corporate agent” can suffice if the lawsuit relates to the “in-state activity.” (Daimler AG v. Bauman

(2014) 571 U.S. 117, 127; see also Weil & Brown, *supra*, at ¶ 3:240.1 [“Provided a ‘substantial connection’ with the forum is created thereby, even a single act may support specific personal jurisdiction over a nonresident.”].)

To exercise specific jurisdiction, a court must find purposeful availment (the defendant made purposeful contacts with the forum), relatedness (the litigation arises from or relates to the defendant’s forum contacts), and reasonableness (the forum’s “assertion” of specific jurisdiction “comport[s] with ‘fair play and substantial justice’”). (Halyard Health, *supra*, 43 Cal.App.4th at 1070.)

The plaintiff bears the burden to establish specific jurisdiction. (See Vons Companies, Inc. v. Seabest Foods, Inc. (1996) 14 Cal.4th 434, 449.)

DISCUSSION

Purposeful
Availment

Veriff

Veriff states:

Veriff does not operate the website. It merely contracted with Stake.us, supplying technology that the Stake Defendants—not Veriff—then chose where and how to deploy. Helm Decl. ¶ 7. Other courts have explained why this sort of indirect connection to a forum state fails to establish personal jurisdiction: The “link” between Veriff and California “runs through” the Stake Defendants, who elected to use Veriff’s “technology” for website visitors in California. *Redd v. Amazon Web Servs., Inc.*, 673

F. Supp. 3d 943, 946 (N.D. Ill. 2023) (no personal jurisdiction over provider of facial recognition technology). And Veriff cannot be haled into California court because of the Stake Defendants' "unilateral activity." [Pavlovich v. Superior Court (2002) 29 Cal.4th 262, 269] (quoting [Burger King Corp. v. Rudzewicz (1985) 471 U.S. 462, 475]). . . .

* * *

It thus makes no difference that Veriff's software allegedly "verified each California player before they could gamble on Stake.us." FAC ¶ 159. Veriff's software does exactly the same thing for persons "across the United States," id. ¶ 27, using its capacity to analyze all sorts of government-issued identification from jurisdictions around the world, see Helm Decl. ¶ 3. Nothing about that functionality was "expressly aimed" at California, just as an interactive website equally available to California users and those in other states is not expressly aimed at California. [Herbal Brands, Inc. v. Photoplaza, Inc. (9th Cir. 2023) 72 F.4th 1085, 1091]. It was the Stake Defendants' choice—not Veriff's—to use the identity-verification service with individual customers within California. Helm Decl. ¶ 7. That choice by "third parties ... cannot ... satisfy the express aiming requirement." Pavlovich, 29 Cal.4th at 276].

(Motion, pp. 4-5, emphasis in original.)

Additionally, Veriff states:

The FAC makes two additional allegations in an apparent bid to show that Veriff itself targeted California. Both fail as a matter of law to establish specific jurisdiction.

First, Plaintiff alleges—without further elaboration—that Veriff "recently raised more than \$100 million in a Series C Funding Round in part from California-based investment firms." FAC ¶ 30. As explained, however, the "unilateral activity" of a third party (here, an unnamed investment firm) cannot establish purposeful availment. Pavlovich,

29 Cal. 4th at 269 (quoting Burger King, 471 U.S. at 475). Again, this is not an allegation that Veriff itself targeted California. . . . There is certainly no jurisdictionally sound reason to impute a mere investor's contacts. . . . Plaintiff's contention would subject any company anywhere in the world to jurisdiction in California courts simply because it has California investors, even if there is no other nexus—no employees, no customers, no revenue, nothing. That cannot be the law.

Second, Plaintiff alleges that “Veriff recruits and employs individuals in California.” FAC ¶ 30. In fact, Veriff has no California-based employees. Helm Decl. ¶ 8. . . .

(Id. at pp. 5-6, emphasis in original, footnote omitted.)

Plaintiff

The People cite *Briskin v. Shopify, Inc.* (9th Cir. 2025) 135 F.4th 739. They assert:

Veriff's undisputed conduct is no different from Shopify's in *Briskin*. Through its “partnership” with Easygo and Stake, Veriff embedded its software into the Stake.us website and used that software to provide “identity-verification services to authenticate would-be players as part of account verification, recurring authentication and account recovery,” including “the customer age and address.” Ex. 15 at 1, 4; Helm Decl. ¶¶ 6, 7. Veriff therefore used its embedded software on a third-party website “to take personal information from the Californian's files for its own commercial gain” in a manner that violated California law. *Briskin*, 135 F.4th at 756. And Veriff undoubtedly knew it was interacting with California residents since its very job is to collect, verify, and continuously re-verify the physical location of all potential Stake.us customers. Contrary to its arguments (see Veriff Mot. at 4), Veriff was far more than a passive service provider on an interactive website. Instead, like Shopify, it collected the identity and location of all California residents seeking to create a Stake.us account in exchange for payment from Sweepsteaks and thus interacted with California customers as an “intermediary” for Stake.us. *Briskin*, 135 F.4th at 759.

If that were

not enough (which it is), Veriff admits that its parent company employs twelve California-based employees. Helm Decl. ¶ 9. Veriff claims that these employees are not “involved in the development or delivery of Veriff’s identity-verification services.” Id. But public records demonstrate otherwise. For example, Veriff’s founder and CEO, Kaarel Kotkas, is based in California. Ex. 16. And another California-based Veriff employee works in customer support—a position that would require direct interactions with California-based Stake.us users who need help with account verification. Ex. 17. These additional factors demonstrate that Veriff has an even stronger connection to California than did Shopify.

Relying on Redd

v. Amazon Web Services, Inc., 673 F. Supp. 3d 943 (N.D. Ill. 2023), Veriff contends that the Court lacks jurisdiction because the “‘link’ between Veriff and California ‘runs through’ the Stake Defendants, who elected to use Veriff’s ‘technology’ for website visitors in California.” Veriff Mot. at 4-5. But Redd supports the People’s position—not Veriff’s. In Redd, an Illinois-based plaintiff uploaded his biometric data to a third-party app through a technology provided by Amazon Web Services (“AWS”) that also allowed AWS to “collect[], store[], possess[], and use[]” the data. 673 F. Supp. 3d at 946. The court (applying Illinois law) observed that “[i]t is possible for a defendant to establish the requisite contacts via a third party so long as the defendant itself targets the forum through that third party,” but declined to exercise personal jurisdiction because “allegations to that effect are absent here.” Id. The People, by contrast, have not only alleged but established through record evidence that Veriff targeted California using Sweepstakes. Indeed, it is undisputed that Veriff verified where each gambler was physically located (including in California) and then continued collecting and authenticating that user’s data on a “recurring” basis. Helm Decl. ¶ 6. Jurisdiction is therefore appropriate even under the standard articulated in Redd.

(Opposition, pp. 19-20.)

Reply

In reply, Veriff maintains:

* “The Stake Defendants’ embedding of Veriff’s software on Stake.us does not establish personal jurisdiction[.]” (Reply, p. 2 [“Veriff did not even operate the widely available interactive website, Stake.us, at the heart of this

case. Veriff merely sold its identity-verification tool to the Stake Defendants, who then chose to embed the tool in Stake.us and operate that website in California along with dozens of other states.”], bolding and capitalizing deleted; see also id. at pp. 3-4 [distinguishing Briskin and analogizing Redd].)

* “The employees of Veriff’s corporate parent do not establish personal jurisdiction”:

. . . Veriff

has already explained that its parent company has 12 remote employees living in California, none of whom are “involved in the development or delivery of Veriff’s identity-verification services.”

Mot. at 6 n.2; Mar. 2, 2026 Decl. of Ulla Helm ¶ 9. Plaintiff purports to show “otherwise,” Opp. at 19, but its new argument relies entirely on erroneous extrapolations from a pair of LinkedIn pages.

Plaintiff

first contends that the CEO of Veriff’s parent company, Kaarel Kotkas, “is based in California.” Id. That is wrong. As Mr. Kotkas explains in his accompanying sworn declaration, he is a resident (and citizen) of Estonia. Supplemental Declaration of Kaarel Kotkas (“Supp. Kotkas Decl.”) ¶ 2. As part of

his professional duties, Mr. Kotkas makes periodic, temporary visits to a range of jurisdictions around the world, including California, but he has never been based in California. Id. ¶ 3; see

Mut. Trading Co. v. Asahi Shuzo K.K., 2021 WL 515399, at *6 (C.D. Cal. Feb. 3, 2021) (visits to “offices in California” not “sufficient to establish specific jurisdiction”). Plaintiff

appears to suggest otherwise because Mr. Kotkas’s LinkedIn profile at one point associated him with “San Francisco, CA.”

Opp. Ex. 16. But that was not a statement of residency. Mr. Kotkas

instead associated his LinkedIn profile with San Francisco for corporate strategic reasons, as part of a wider effort to market Veriff’s parent company as aligned with the United States market.

Supp. Kotkas Decl. ¶ 4.

Plaintiff

next notes that a single California-based employee of Veriff’s parent company, Kim Yeung, describes her role on her LinkedIn profile as “customer

support.” Opp. at 19; see id. Ex.

17. From that fact alone, Plaintiff

speculates that Ms. Yeung must have “direct interactions with California-based Stake.us users who need help with account verification,” which—in Plaintiff’s telling—would warrant the exercise of personal jurisdiction over Veriff. Opp. at 19. Again, that is factually incorrect.

Veriff’s parent company employs customer support personnel around the globe. Supplemental Declaration of Ulla

Helm (“Supp. Helm Decl.”) ¶ 2. Those

personnel (including the California-based employee at issue) provide support to the broad array of client businesses that have contracted to use Veriff’s services. Id. Those, after all, are the customers of Veriff’s parent company. Id. Contrary to Plaintiff’s unfounded guess, the professional responsibilities of the company’s customer support personnel—including Ms. Yeung—are to support the full range of Veriff’s client businesses, not their end users. Id.

¶¶ 2-3.

(Id. at pp. 4, 5-6, **bolding and capitalizing in title deleted, remaining emphasis in original.**)

Analysis

The Court finds the purposeful-availment prong unsatisfied for the following reasons.

First, the People cannot rely on allegations in the complaint to meet their burden. (See Weil & Brown, *supra*, at ¶ 3:388 [advising that “[a]n unverified pleading has no evidentiary value in determining personal jurisdiction”], **emphasis in original**; see also *In re Automobile Antitrust Cases I & II* (2005) 135 Cal.App.4th 100, 110 [instructing that “[t]he plaintiff must provide affidavits and other authenticated documents in order to demonstrate competent evidence of jurisdictional facts” and that “[a]llegations in an unverified complaint are insufficient to satisfy this burden of proof”].)

Second, Plaintiff’s evidence is unauthenticated and unverified. (See Opposition, pp. 18-19 [citing exhibits 15, 16, and 17]; see also Caforio Decl., Exs. 15 [internet post/case study], 16 [LinkedIn profile of Kaarel Kotkas], 17 [LinkedIn

profile of Kim Yeung].)

Third, assuming admissibility, the evidence fails to show purposeful availment.

Exhibit 15 is a post/case study from Veriff's website. Plaintiff cites pages 1 and 4, claiming "Veriff embedded its software into the Stake.us website and used that software to provide 'identity-verification services to authenticate would-be players as part of account verification, recurring authentication and account recovery,' including 'the customer age and address.'" (Opposition, p. 19.) Neither page mentions California or shows intent by Veriff to target California specifically as opposed to the United States generally. (See Caforio Decl., Ex. 15, pp. 1, 4.)

Exhibit 16 is the LinkedIn profile of Kaarel Kotkas. Plaintiff asserts that Kotkas is Veriff's founder and that he "is based in California." (Opposition, p. 19.) It is true that "San Francisco, California, United States" appears on the page (Caforio Decl., Ex. 16, p. 1), but Kotkas filed a declaration that rebuts the statement. He declares:

2. I am a citizen and resident of Estonia. I do not reside or have resident status in the United States. I do not have any category of United States employment visa.

3. As part of my professional duties, I make periodic, temporary visits to a range of jurisdictions around the world, including California. I have never been based in California. I do not own or rent any apartment or residence in California on either a short-term or long-term basis.

(Kotkas Decl., ¶¶ 2-3.)

Exhibit 17 is a LinkedIn profile of a customer-service representative named Kim Yeung. (See Caforio Decl., p. 1.) Plaintiff claims Yeung is based in California and must be involved in "direct interactions with California-based Stake.us users who need help with account verification." (Opposition, p. 19.) The claim is

unsubstantiated. Veriff's corporate representative declares that Yeung is employed by Veriff's parent company, Veriff Inc., not by Veriff:

2. Veriff

Inc. employs customer support personnel in jurisdictions across the globe. Together, those personnel offer support to the hundreds of client businesses worldwide that use Veriff's services. Customer support personnel do not specialize in supporting any particular client business.

Customer support personnel do not provide support directly to the end users of any client business.

3. Kimberly

Kin-Yin Yeung is employed by Veriff Inc. as a Customer Support Specialist. Like other customer support personnel, she does not specialize in supporting any particular client business and does not provide support directly to end users of any client business beyond redirecting occasional inquiries to client businesses.

(Supp. Helm Decl., ¶¶ 2-3; see also Reply, p.

6 ["Plaintiff does not dispute it would have to establish both that Veriff 'purposefully availed' of California's market by seeking out 'forum benefits' and that Plaintiff's claim 'is related to or arises out of' Veriff's 'contacts with the forum.' Mot. at 3 (quoting Pavlovich,

29 Cal. 4th at 269). The fact that

Veriff's parent company deploys a worldwide customer support team to serve all client businesses, and that a single member of that team happens to be based in California, comes nowhere close to making either showing. Ms. Yeung's choice to work remotely from California does not establish that Veriff's business purposefully targeted the California market. Nor does the FAC's claim against Veriff, which makes no mention of customer support, arise from or relate to Ms. Yeung's work."], emphasis in original.)

Fourth, *Briskin v. Spotify*, supra, 135 F.4th

739, is distinguishable. The Ninth

Circuit, en banc, applied the *Calder v. Jones* (1984) 465 U.S. 783 effects test to assess purposeful availment.

The test is utilized "[f]or claims sounding in tort," like a privacy violation or a data breach, "[t]o analyze whether the tort was purposefully directed to the forum state[.]" (*Briskin*, supra, 135 F.4th at p. 751.)

It "requires that the defendant (1) commit an intentional act, that is

(2) expressly aimed at the forum state, and (3) which causes harm that the defendant knows will be suffered in the forum state.” (Ibid.) The Briskin defendant “installed tracking software onto unsuspecting Californians’ phones, violating data access and privacy rights, to obtain and sell data[.]” (Weil & Brown, *supra*, at ¶ 3:307 [summarizing Briskin]; see also Briskin, *supra*, 135 F.4th at pp. 758-759 [reasoning that (1) “Shopify knows about its California consumer base, conducts its regular business in California, contacts California residents, interacts with them as an intermediary for its merchants, installs its software onto their devices in California, and continues to track their activities[.]” and (2) “Shopify deliberately reached out beyond its home state by knowingly installing tracking software onto unsuspecting Californians’ phones so that it could later sell the data it obtained, in a manner that was neither ‘random, isolated, [n]or fortuitous[.]’”].) By contrast, Plaintiff fails to demonstrate “that Veriff performed any sort of comparable conduct.” (Reply, p. 3.) “There is no [showing] that Veriff implanted anything on any user device in California—let alone a cookie that, as in Briskin, extracted any information from a user’s device.” (Ibid.; see also *id.* at p. 4.)

Fifth, the Court agrees with Veriff that *Redd v.*

Amazon Web Services is analogous.

The complaint there alleged that AWS “market[ed] and [sold] a program called ‘Rekognition,’ an image-recognition technology, to businesses and other entities.” (*Redd*, *supra*, 673

F.Supp.3d at p. 945.) AWS provided the

program to Wonolo, Inc. (‘Wonolo’) for use on its app. (See *ibid.*) The district court held that Wonolo’s subsequent decision to use the program in Illinois did not demonstrate

targeting of Illinois by AWS itself. (See

id. at pp. 946-947.) Likewise, the

instant record evinces that “Stake.us embeds Veriff’s software into its own

interface” and that “Stake.us—not Veriff—chooses where to make that interface available.” (*Helm Decl.*, ¶ 7.)

Sixth, to the extent Plaintiff means to invoke alter-ego

or agency jurisdiction against Veriff, the opposition brief is conclusory, and relied on inadequate evidence. (See *Opposition*,

pp. 7, 39-40.)

The final

issue concerns Plaintiff's discovery request.

(See *id.* at p. 40.)

Generally speaking, a plaintiff is "entitled to conduct discovery with regard to the issue of jurisdiction before" the motion to quash is

decided. (Weil & Brown, *supra*,

at ¶ 3:380.) "[D]iscovery should be

allowed on [a] showing [that] 'discovery is likely to lead to the production of

evidence of facts establishing jurisdiction[.]'" (*Ibid.* [quoting *Hardell v. Vanzyl*

(2024) 102 Cal.App.5th 960, 974-975].) "But a continuance may be denied if there is

no showing that discovery would likely produce evidence of additional 'contacts.'" (*Ibid.* [quoting *Beckman v. Thompson* (1992) 4 Cal.App.4th 481, 486-487].)

The People fails to establish such a likelihood. Jurisdictional discovery is denied.

Relatedness

The

opposition brief lumps multiple Defendants together, calling them the "Direct Contact Defendants." (Opposition, p.

30.) Veriff is included. Plaintiff discusses the Direct Contact

Defendants collectively in lieu of discussing the Veriff individually. Plaintiff argues:

The Direct

Contact Defendants' relationship to California consists of—among other

things—operating and managing Stake.us, contracting with Sweepsteaks so that

their games and technology target California residents, or directly interacting

with California residents playing their games on Stake.us. The People's claims

arise directly out of that connection because the Direct Contact Defendants'

gambling enterprise, and false statements in promoting it, violated

California's Unfair Competition Law and False Advertising Law. The relationship

at issue therefore meets the "relaxed, flexible" "arise out of or relate to"

standard. See, e.g., *Briskin*, 135 F.4th at 760 ("Briskin's claims 'arise out

of' Shopify's contact with Briskin's device, which Shopify allegedly knew was

in California. Briskin's claims also 'relate to' Shopify's California contacts

because Briskin alleges the kind of injury that would 'tend to be caused' by

Shopify's contacts with California merchants and consumers.").

(*Ibid.*)

The People

fails to establish that Veriff managed Steak.us, contracted with Sweepsteaks so that their games targeted California residents, or directly interacted with California residents playing their games on Stake.us. The People seem to hinge their position on the same deficient evidence that they cite for the purposeful-avilment prong.

Reasonableness

Veriff's burden to show unreasonableness does not apply until Plaintiff proves the first two prongs. (See, e.g., Weil & Brown, *supra*, at ¶ 3:255 [indicating that the unreasonableness burden belongs to the defendant and arises after the plaintiff shows purposeful avilment and relatedness].)

Veriff's motion to quash service of summons for lack of personal jurisdiction is granted.

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People v. Sweepsteaks Ltd. (25STCV25304)

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Tentative Ruling Re: Motion to Quash

Date: 8/21/26

Time: 11:00 am

Moving Party: Evolution AB (publ) ("Evolution AB"), Evolution Malta Holding Ltd. ("EMHL"), Evolution US LLC ("Evolution US"), Evolution Malta Ltd. ("Evolution Malta"), Bigtime Gaming Pty Ltd. ("Bigtime Gaming"), Nolimit City Holding Ltd. ("Nolimit City Holding", and Nolimit City Ltd. ("Nolimit City") (collectively "Evolution Defendants")

Opposing Party: The People of the State of California ("People" or "Plaintiff")

Department: 11

Judge: Bruce G. Iwasaki

TENTATIVE RULING

The motion to quash is granted.

BACKGROUND

The operative complaint (“FAC”) alleges that numerous companies, the Evolution Defendants among them, play a role in operating a gambling website called Stake.us. (See Opposition, p. 7.) Plaintiff claims the website is “highly addictive” and unlawful. (Ibid.; see also FAC, ¶¶ 285-302.)

“Evolution AB is a publikt aktiebolag incorporated in Sweden and headquartered in 5 Stockholm, Sweden.” (Ljungkvist Decl., ¶ 15.)

EMHL “is a holding company incorporated and headquartered in Malta.” (Id. At ¶ 21.) It “is a wholly owned subsidiary of Evolution AB, through which Evolution AB indirectly owns every other Evolution subsidiary.” (Ibid.)

Evolution US “is a limited liability company incorporated in Delaware and headquartered in New Jersey.” (Id. At ¶ 26.) It “is wholly owned by EMHL, and employs more than 3,000 people.” (Ibid.)

Evolution Malta “is a limited company incorporated and headquartered in Malta.” (Id. At ¶ 28.) It “is owned by EMHL, other than one share owned by EMHL subsidiary Evolution Gaming Limited (UK), and employs around 1,500 people in Malta.” (Ibid.)

Bigtime Gaming and Nolimit City “are wholly owned subsidiaries of EMHL that are responsible for the development of games and hold the intellectual property for games with their branding.” (Id. At ¶ 32.) Bigtime Gaming “is headquartered and incorporated in Australia.” (Id. At ¶ 33.) Nolimit City “is headquartered and incorporated in Malta.” (Id. At ¶ 34.)

Nolimit City Holding “is a holding company incorporated and headquartered in Malta.”

(Id. At ¶ 24.) “It is wholly owned by EMHL.” (Ibid.) It “owns multiple Evolution subsidiaries, including Nolimit City [], but does not operate any studios or develop any games.” (Ibid.)

Here, the Evolution Defendants move to quash for lack of personal jurisdiction.

APPLICABLE LAW

There are “two types of personal jurisdiction[,]” general and specific. (Bristol-Myers Squibb Co. v. Superior Court of California, San Francisco County (2017) 582 U.S. 255, 262.) Plaintiff relies on specific jurisdiction.

“When determining whether specific jurisdiction exists, courts consider the ‘relationship among the defendant, the forum, and the litigation.’” (Halyard Health, Inc. v. Kimberly-Clark Corp. (2019) 43 Cal.App.5th 1062, 1070 (“Halyard Health”).)

“[C]ourts focus on the nature and quality (not the quantity) of defendant’s activity in the forum state.”

(Weil & Brown, Cal. Practice Guide: Civ. Procedure Before Trial (The Rutter Group June 2023 Update) ¶ 3:240.) “[S]ingle or occasional acts of the corporate agent” can suffice if the lawsuit relates to the “in-state activity.” (Daimler AG v. Bauman (2014) 571 U.S. 117, 127; see also Weil & Brown, supra, at ¶ 3:240.1 [“Provided a ‘substantial connection’ with the forum is created thereby, even a single act may support specific personal jurisdiction over a nonresident.”].)

To exercise specific jurisdiction, a court must find purposeful availment (the defendant made purposeful contacts with the forum), relatedness (the litigation arises from or relates to the defendant’s forum contacts), and reasonableness (the forum’s “assertion” of specific jurisdiction “comport[s] with ‘fair play and substantial justice’”). (Halyard

Health, *supra*, 43 Cal.App.4th at 1070.)

The plaintiff

bears the burden to establish specific jurisdiction. (See *Vons Companies, Inc. v. Seabest Foods, Inc.* (1996) 14 Cal.4th 434, 449.)

DISCUSSION

Purposeful Availment

The Evolution Defendants

The Evolution Defendants contend:

* Plaintiff fails to demonstrate alter-ego jurisdiction. (See Motion, pp. 7-8.)

* Plaintiff fails to demonstrate agency jurisdiction. (See *id.* At pp. 8-9.)

* Plaintiff's use of group allegations against the Evolution Defendants to show specific jurisdiction is improper. (See *id.* At pp. 9-10.)

* "Evolution Malta did not purposefully avail itself of California by licensing Evolution Games to Sweepsteaks." (*Id.* At p. 11, *bolding and capitalizing deleted*; see also *id.* At p. 12.)

* The decision by Sweepsteaks to offer "volution Games on Stake.us does not establish purposeful availment by any other Evolution Defendant." (*Id.* At p. 12, *bolding and capitalizing deleted*; see also *id.* At pp. 13-14.)

Plaintiff

Plaintiff asserts:

*Evolution Malta –

Evolution

Malta contracted with Sweepsteaks so Evolution's casino games could be hosted on Stake.us, including in California. As the Evolution Defendants admit, Evolution Malta "holds intellectual property associated with Evolution-branded products" and "contracts with customers worldwide, including in the United States." Ljungkvist Decl. ¶ 30. Evolution Malta entered into an agreement with Sweepsteaks to license games to Sweepsteaks on February 2, 2025, and Sweepsteaks began offering Evolution random number generator games on Stake.us the same month. *Id.* ¶¶ 37, 39. Those games are operated on Evolution's servers. See Ex. 1 at 2. Then, in August 2025, Sweepsteaks started hosting Evolution live casino games on its Stake.us platform, including in California. Ljungkvist Decl. ¶ 40.

Using

location tracking software and geofencing technologies, Evolution Malta monitored the locations of Stake.us users and controlled whether users in certain locations accessed its games. "In early 2025, [Evolution AB CEO, Martin Carlesund] directed the company to implement some of the industry's most stringent geolocation and technical controls to ensure that Evolution content was accessible only through licensed operators." Ex. 18 at 1; see also Ex. 19 at 14 (Evolution 2024 Annual Report stating that Evolution "is always able to discontinue its services to operators that fail to comply with the relevant regulations, or that in some other way jeopardise Evolution's market position and/or gaming licences"). And the Evolution Defendants concede that Evolution Malta could dictate whether Evolution games were available on Stake.us in California: In September 2025, shortly after the People initiated this lawsuit, Evolution Malta restricted Sweepsteaks from offering Evolution games in California and used geo-blocking controls to prevent users in California from accessing Evolution's games on Stake.us. Ljungkvist Decl. ¶ 41. Evolution Malta knew it was serving the California market and chose to continue to do so until 2025, even though it always had the technology and leverage to exclude California users.

These

undisputed facts demonstrate that Evolution Malta's conduct is materially indistinguishable from Shopify's conduct in *Briskin*. Like Shopify, Evolution Malta—via a third-party contract—knowingly entered California, offered its products on an interactive website in violation of California consumer protection laws, and pocketed the proceeds. Like Shopify, Evolution Malta's contacts with California were not "random, isolated, and fortuitous."

Not only did Stake.us openly operate in California but, as Evolution Malta admits, Evolution retained control over whether its product was accessible on Stake.us to users in California. Ljungkvist Decl. ¶ 41; see also Briskin, 135 F.4th at 746 (“Shopify concedes that its geolocation technology allowed it to know that Briskin’s device was located in California when it installed cookies on Briskin’s device.”). Evolution Malta earns revenue from every gambler who loses money playing its games, and it actively tracks the location of each such gambler. Accordingly, “not only did [Evolution Malta] intend that the software would operate as it allegedly did,” but (based on its decision not to exercise its location restrictions earlier) it also “unquestionably intended that it would [operate], as programmed, within California.” Id. at 766 (Collins, J., concurring); see also Bridgestone, 99 Cal. App. 4th at 777 (jurisdiction appropriate when defendant “expect[s] that [its product would] be purchased or used by consumers in California” and received “substantial” income “from sale or use of its product in California”).

(Opposition, pp. 20-21, emphasis in original.)

* Evolution US –

Evolution

US meets prong one because it operates live casino games streamed on Stake.us to Californians, thereby directly interacting with and receiving payment from California gamblers. The Evolution Defendants admit that, in August 2025, Evolution released “live” casino games on Stake.us, including in California. Ljungkvist Decl. ¶ 40. Live casino games involve “a game presenter, i.e. dealer, run[ning] the game from a casino gaming table that is followed in real time via a video stream” and “[e]nd users, i.e. the players, mak[ing] betting decisions on their devices like computers, smartphones, tablets, etc.” Ex. 19 at 59. Evolution covers “all aspects required by a gaming operator - from the recruitment and training of game presenters and other staff to streaming, production, supervision, customer services and follow-up.” Id. That means Evolution’s dealers—operating with support from Evolution’s team in Evolution’s studios—directly interact with California gamblers who accessed Evolution’s live games through Stake.us. See id. at 42 (for live games, “player[s are] in dialogue with the game host”).

The

Evolution Defendants concede that Evolution US is behind these streaming operations. It says that “Evolution US operates studios for live casino games

in Pennsylvania, Michigan, Connecticut, and New Jersey,” and that when Sweepstakes began offering Evolution live casino games on Stake.us, they were “streamed from studios outside of California.” Ljungkvist Decl. ¶¶ 27, 40. Not only did Evolution US’s studios stream games into California, but all “major studios” have a Mission Control Room dedicated to “monitor[ing] all gambling activities on [Evolution] gaming floors in real time, 24 hours a day, year-round.” Ex. 19 at 14.

Given these admitted facts, there is little doubt that Evolution US purposefully directed its activities towards California for two reasons. First, just as in Briskin, Evolution US directly interacted with California users through a third-party website in a manner that violated California law by live-streaming gambling content. Indeed, Evolution US’s dealer-employees interacted directly with California-based gamblers playing the illegal Evolution games. Evolution even admits that it retained full control of these casino games and handled “all aspects required by a gaming operator.” Ex. 19 at 59. Second, Evolution US had at least constructive notice that its dealers were interacting with California-based gamblers while hosting its live games since Stake.us openly and publicly operated in California. Ex. 3. In addition, Evolution “imposed a ‘regional restriction’ for its casino games offered on Stake.us,” which required every gambler to specifically identify his or her physical location (including California) before gambling on any Evolution-branded game. FAC ¶ 188. Yet the Evolution Defendants concede that it did not restrict Sweepstakes from offering Evolution games in California or use geolocation services to control where Evolution games were accessed. Instead, Evolution US directly livestreamed its casino games into California, thereby interacting with California residents. Ljungkvist Decl. ¶ 41; see also Briskin, 135 F.4th at 746 (“Shopify concedes that its geolocation technology allowed it to know that Briskin’s device was located in California when it [allegedly violated California law.]”).

In addition to all undisputed facts above, the “special regulation” doctrine further supports exercising jurisdiction because Evolution US was knowingly sending a regulated product into California in violation of California statutory law. This doctrine is especially important here because Evolution US is in charge of the Evolution Defendants’ legal and compliance operations on behalf of Evolution AB and its subsidiaries. Ljungkvist Decl. ¶ 27.

(Id. At pp. 21-23, emphasis in original.)

* Evolution AB, EMHL, Bigtime Gaming, Nolimit City, and Nolimit City Holding – Plaintiff invokes the representative-services doctrine and alter-ego jurisdiction. (See id. At pp. 32-37.)

Reply

In reply, the Evolution Defendants state:

* “Plaintiff fails to establish specific jurisdiction over Evolution Malta or Evolution US.” (Reply, p. 2, ~~holding and capitalizing deleted~~; see also id. At pp. 3-6 [arguing that Plaintiff fails to allege California-specific contacts by either Evolution Malta or Evolution US].)

* It is undisputed that the other Evolution Defendants did not have direct contacts with California. (See id. At pp. 6-7.)

* “Plaintiff’s concession that the Court lacks general jurisdiction over any Evolution Defendant . . . dooms Plaintiff’s claims based on alter ego or agency. Alter ego and agency theories are limited to “the purview of general jurisdiction.” (Id. At p. 7, emphasis in original.)

* “Plaintiff has not pled jurisdiction through its ‘representative services’ agency theory.” (Ibid., ~~holding and capitalizing deleted~~; see also id. At pp. 8-9.)

* “Plaintiff has not pled alter ego jurisdiction.” (Id. At p. 9, ~~holding and capitalizing deleted~~; see also id. At p. 10.)

* “Plaintiff has not pled personal jurisdiction over three non-existent entities: Red Tiger Gaming Ltd., Red Tiger International Ltd., and ‘NetEnt.’” (Id. At p. 10.)

Analysis

The Court begins with Evolution Malta and Evolution US. The Court finds the purposeful-availment prong unsatisfied for the following reasons.

First, the People cannot rely on allegations in the complaint to meet their burden. (See Weil & Brown, *supra*, at ¶ 3:388 [advising that “[a]n unverified pleading has no evidentiary value in determining personal jurisdiction”], emphasis in original; see also *In re Automobile Antitrust Cases I & II* (2005) 135 Cal.App.4th 100, 110 [instructing that “[t]he plaintiff must provide affidavits and other authenticated documents in order to demonstrate competent evidence of jurisdictional facts” and that “[a]llegations in an unverified complaint are insufficient to satisfy this burden of proof”].)

Second, Plaintiff’s evidence is unauthenticated and unverified. (See Opposition, pp. 20-23 [citing exhibits 1, 18, and 19]; see also Caforio Decl., Exs. 1 [internet article/blog post from kaushikbhatti.com], 18 [website pages from www.gamblinginsider.com, which provides news on the gambling industry], 19 [Evolution 2024 Annual Report].)

Third, assuming admissibility, the evidence fails to show purposeful availment.

Exhibit 1 is an internet article/blog post from <https://kaushikbhatti.com/remote-game-server/>. Plaintiff cites page 2 for the proposition that “Evolution random number generator games” “are operated on Evolution’s servers.” (Opposition, p. 20.) Page 2 does not mention Evolution. (See Caforio Decl., Ex. 1, p. 2.)

Exhibit 18 is an article appearing on www.gamblinginsider.com. Plaintiff quotes page 1: “In early 2025, [Evolution AB CEO, Martin Carlesund] directed the company to implement some of the industry’s most stringent geolocation and technical controls to ensure that Evolution content was accessible only through licensed operators.” (Id. At Ex. 18, p. 1.) California is not discussed. The statement does not show intentional contacts with the state.

Exhibit 19 is Evolution’s 2024 Annual Report. Plaintiff cites pages 14, 42, and 59. (See Opposition, pp. 20-22.) The pages do not address California. (See Caforio Decl., Ex. 19, pp. 14, 42, 59.)

Fourth, *Briskin v. Spotify*, *supra*, 135 F.4th

739 is distinguishable. The Ninth

Circuit applied the *Calder v. Jones* (1984) 465 U.S. 783 effects test to

assess purposeful availment. The test is

utilized “[f]or claims sounding in tort,” like a privacy violation or a data

breach, “[t]o analyze whether the tort was purposefully directed to the forum

state[.]” (Briskin, *supra*, 135

F.4th at p. 751.) It

“requires that the defendant (1) commit an intentional act, that is (2)

expressly aimed at the forum state, and (3) which causes harm that the

defendant knows will be suffered in the forum state.” (Ibid.) The Briskin defendant “installed

tracking software onto unsuspecting Californians’ phones, violating data access

and privacy rights, to obtain and sell data[.]”

(Weil & Brown, *supra*, at ¶ 3:307 [summarizing Briskin];

see also Briskin, *supra*, 135 F.4th at pp. 758-759 [reasoning

that (1) “Shopify knows about its California consumer base, conducts its

regular business in California, contacts California residents, interacts with

them as an intermediary for its merchants, installs its software onto their

devices in California, and continues to track their activities[.]” and (2)

“Shopify deliberately reached out beyond its home state by knowingly installing

tracking software onto unsuspecting Californians’ phones so that it could later

sell the data it obtained, in a manner that was neither ‘random, isolated,

[n]or fortuitous[.]’.”) By contrast,

Plaintiff fails to show “comparable conduct by any Evolution Defendant.” (Reply, p.

3; see also *id.* At pp. 3-4 [claiming: “Stake.us, not Evolution

Malta, transacted with end-users. Nor is Evolution Malta alleged to have

collected Californians’ personal data or used geolocation information for any

purpose other than blocking Stake.us’s end-users from sweepstakes games. This

is distinct from Briskin because Evolution has no transactional

relationship with gaming operators’ end-users or monetization of their data. In

fact, ‘[t]he identity of the end-user is unknown to [Evolution]’ and ‘the

operators [] handle all monetary transactions with their end users.’ (Opp. Ex.

19 at 14, 30.) The allegations against Evolution Malta boil down to contracting

with Sweepsteaks, which then distributed games nationwide, including in

California. (Opp. 20.) But licensing is insufficient to establish purposeful

availment.”; *id.* At p. 4 [“Plaintiff fails to allege facts supporting

that Evolution US purposefully availed itself of California. (Motion 10-11.)

Plaintiff attempts to analogize Evolution US to Briskin (Opp. 21-23),

but, again, Evolution US did not install tracking software on California

consumers’ devices, collect or commercially utilize their personal data, or

even know the identity of Stake.us’s California customers. (See Opp. Ex. 19 at

29 ('Evolution cannot see the identity of the player') [¶] Plaintiff focuses on Evolution US's provision of livestreamed games that Stake.us made available to its customers, which Plaintiff characterizes as Evolution US 'directly interacting with and receiving payments from California gamblers.' (Opp. 21-22.) The Opposition cites no evidence that Evolution US knew any player's identity or location or received payment from any California player. (See Opp. Ex. 19 at 30, 95 (Evolution customers add 'payment functions' and 'own the relationship with the end users').) Plaintiff points to Evolution's 'geolocation services' software (Opp. 22), but this was used to block Californians from accessing Evolution sweepstakes games as of September 1, 2025, after Stake.us began offering livestreamed Evolution games in August 2025. (Ljungkvist Decl. ¶¶ 40-41.)", emphasis in original; see also id. At pp. 5-6 [pointing out further distinctions].)

Fifth, Plaintiff's effort to use the representative-services doctrine fails. (See Opposition, pp. 37-38.) For one thing, case law describes the doctrine as "a variant of agency theory that is used as a basis for general jurisdiction over a foreign parent corporation." (Dorel Industries, Inc. v. Superior Court (2005) 134 Cal.App.4th 1267, 1272, emphasis added; see also Sonora Diamond Corp. v. Superior Court (2000) 83 Cal.App.4th 523 [stating that "[t]he jurisdiction acquired by the forum state under this rationale is general"], emphasis added.) For another thing, the High Court "has criticized the . . . doctrine . . . because it would 'subject foreign corporations to general jurisdiction whenever they have an in-state subsidiary or affiliate[.]'" (Weil & Brown, supra, at ¶ 3:212.3 [quoting Daimler AG v. Bauman, supra, 571 U.S. 117, 134-136], emphasis added.) Several other courts – most notably, the Second District – have also criticized it. (See id. at ¶ 3:213 [citing cases and noting that "[s]ome courts have rejected the 'alter ego,' 'agency' and 'representative services' doctrines as a basis for general or specific jurisdiction, concluding instead that 'the proper jurisdictional question' is simply whether the foreign parent corporation purposefully availed itself of forum benefits by 'deliberately directing the subsidiary's activities in, or having a substantial connection with, the forum state'"], emphasis in original.)

The Court turns to Evolution AB, EMHL, Bigtime Gaming, Nolimit City, and Nolimit City Holding. Plaintiff refers to this group as the "Indirect Contact Defendants." (See Opposition,

pp. 32-37.). To reiterate, the People cite the representative-services doctrine and alter-ego jurisdiction. (See *ibid.*) The Court finds that they fail to meet their burden.

First, for the reasons already stated, the representative-services doctrine is inapplicable.

Second, the section pertaining to alleged alter-ego or agency status is conclusory (see *ibid.*), and the cited evidence fails to prove alter-ego or agency jurisdiction. (See *ibid.*; see also Caforio Decl., Exs. 19, 21.)

The final issue concerns Plaintiff's discovery request.

(See *id.* at p. 40.)

Generally speaking, a plaintiff is "entitled to conduct discovery with regard to the issue of jurisdiction before" the motion to quash is decided. (Weil & Brown, *supra*, at ¶ 3:380.) "[D]iscovery should be allowed on [a] showing [that] 'discovery is likely to lead to the production of evidence of facts establishing jurisdiction[.]'" (*Ibid.* [quoting *Hardell v. Vanzyl* (2024) 102 Cal.App.5th 960, 974-975].) "But a continuance may be denied if there is no showing that discovery would likely produce evidence of additional 'contacts.'" (*Ibid.* [quoting *Beckman v. Thompson* (1992) 4 Cal.App.4th 481, 486-487].) The People fail to establish such a likelihood. Jurisdictional discovery is denied.

Relatedness

Once again, the Court begins with *Evolution Malta* and *Evolution US*. The Court finds the purposeful-availment prong unsatisfied for the following reasons.

The opposition brief lumps multiple Defendants together, calling them the "Direct Contact Defendants." (See Opposition, p. 30.) *Evolution Malta* and *Evolutions US* are included. Plaintiff discusses the Direct Contact Defendants collectively in lieu of discussing the *Evolution Malta* and *Evolution US* individually.

Plaintiff argues:

The Direct Contact Defendants'

relationship to California consists of—among other things—operating and managing Stake.us, contracting with Sweepsteaks so that their games and technology target California residents, or directly interacting with California residents playing their games on Stake.us. The People's claims arise directly out of that connection because the Direct Contact Defendants' gambling enterprise, and false statements in promoting it, violated California's Unfair Competition Law and False Advertising Law. The relationship at issue therefore meets the "relaxed, flexible" "arise out of or relate to" standard. See, e.g., *Briskin*, 135 F.4th at 760 ("Briskin's claims 'arise out of' Shopify's contact with Briskin's device, which Shopify allegedly knew was in California. Briskin's claims also 'relate to' Shopify's California contacts because Briskin alleges the kind of injury that would 'tend to be caused' by Shopify's contacts with California merchants and consumers.").

(Ibid.)

The People fail

to establish that any of the "Direct Contact" Defendants manage Stake.us, target California residents, or directly interact with California residents. The People seem to hinge their position on the same deficient evidence that they cite for the purposeful-avilment prong.

The People do

not discuss the relatedness prong as to Evolution AB, EMHL, Bigtime Gaming, Nolimit City, and Nolimit City Holding. (See Opposition, pp. 32-37, 39-40 [addressing only their arguments regarding the representative-services doctrine and alter-ego jurisdiction].) Their burden is unsatisfied.

Reasonableness

The Evolution

Defendants' burden to show unreasonableness does not apply until Plaintiff proves the first two prongs. (See, e.g., *Weil & Brown*, supra, at ¶ 3:255 [indicating that the unreasonableness burden belongs to the defendant and arises after the plaintiff shows purposeful availment and relatedness].)

The

Evolution Defendants' motion to quash service of summons is granted.